

26NNCV00387 26NNCV00387

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#7 - SHAVIV DELKHAH vs TESLA MOTORS, INC.

MOTIONS

TO COMPEL FURTHER RESPONES TO REQUESTS FOR PRODUCTION (9164) AND FORM INTERROGATORIES (9418)

Plaintiff moves to compel further responses to Requests for Production of Documents, Set One, and to Form Interrogatories, Set One. Both motions arise from discovery Plaintiff served on April 20, 2026, to which Tesla served objection-only responses on May 22, 2026. The requests for production at issue are Nos. 1 through 85, and the form interrogatories at issue are Nos. 1.1, 3.1, 3.2, 3.3, 4.1, 4.2, 12.1 through 12.7, 14.1, 14.2, 15.1, 17.1, and 50.1 through 50.6.

Plaintiff's counsel sent a meet-and-confer email and letter on May 26, 2026. Plaintiff's counsel replied to the same email thread Tesla had used to transmit its discovery responses, copied nine Theta Law Firm attorneys and staff, stated that motions would be filed if substantive responses and production were not received by June 2, 2026, and expressly invited a meet and confer prior to the June 2 deadline.

The opposition contends the May 26 letter "was not transmitted to ," did not reach the attorney responsible for discovery issues, and was followed by no telephone call or substantive follow-up. The opposition also states, "Tesla intend[ed] to serve supplemental prior to the July 16, 2026 hearing, which will render the Motion[s] moot." (Opp. (9164), p. 2 ; Opp. (9418), p. 2.)

Plaintiff's reply papers state that, as of July 8, 2026, Tesla still had not served any supplemental responses and had produced no documents.

After reviewing the Mousavi Declarations in support of the replies, the Court finds Plaintiff made a reasonable and good faith attempt to resolve these disputes informally. Tesla served its own discovery responses from rather than , and Plaintiff replied on that same thread to the same group of recipients Tesla chose to use. Plaintiff's email stated the response deadline in bold, and the letter expressly offered a telephonic conference. The Court finds Tesla is not entitled to ignore that email communication and then rely on its own nonresponse as a ground to defeat both motions. The meet-and-confer requirement was satisfied.

As to the oppositions' arguments that the motions are moot—the Court finds Tesla's stated intention to serve supplemental responses did not moot either motion. Tesla said it intended to supplement before the hearing, but Plaintiff's reply papers state that no supplemental responses were served as of July 8, 2026. The Court therefore rules on the motions.

Requests for Production of Documents, Set One (9164)

Plaintiff's motion addresses requests directed to the subject vehicle's warranty and repair history, communications concerning the subject vehicle, evaluations of Plaintiff's pre-litigation repurchase request, and Tesla's policies and similar-vehicle information. That showing is sufficient to establish good cause.

Tesla's responses to the document demands were objection only. Tesla served no statement of compliance, no representation of inability to comply, produced no documents, and served no privilege log. The responses are not Code-compliant. The burden, vagueness, relevance, privacy, proprietary, and arbitration objections were asserted in boilerplate form. Further, confidentiality and proprietary objections do not justify wholesale nonproduction. The proper remedy for confidential material is a protective order, not total refusal to produce.

Additionally, Tesla's reliance on a future motion to compel arbitration does not support a discovery stay on this record. Plaintiff's evidence states no motion to compel arbitration had been filed and no stay had

been entered. The motion to compel further responses to Requests for Production, Set One, is therefore GRANTED.

Form Interrogatories, Set One (9418)

Tesla's responses to the form interrogatories likewise consisted of uniform boilerplate objections and no substantive answers. For the same reasons discussed above, Tesla's boilerplate burden, vagueness, equally available, privilege, and relevance objections are unsupported. The motion to compel further responses to Form Interrogatories, Set One, is therefore GRANTED.

Sanctions

Plaintiff requested monetary sanctions of \$5,784.70 on the RFP motion and \$4,584.70 on the interrogatory motion, supported by counsel's declarations. Tesla also requested \$1,575.00 on the document-demand motion and \$1,250.00 on the interrogatory motion.

The Court finds Tesla did not act with substantial justification. Tesla served objection-only responses, produced no documents on the requests for production, provided no privilege log, and relied in part on a contemplated arbitration motion that had not been filed. Tesla's sanctions requests are denied.

Plaintiff is the prevailing party here, but the Court will reduce the sanctions award to a reasonable amount. Plaintiff is awarded monetary sanctions against Defendant Tesla, Inc. and its counsel of record, jointly and severally, in the total amount of \$2,500 - \$1,250 per motion.

Conclusion

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents, Set One (9164), is GRANTED. Within 10 days of service of this order: Defendant shall (1) serve further, verified, Code-compliant responses to Requests for Production of Documents, Set One, Nos. 1 through 85, and (2) produce all nonprivileged responsive documents. If Defendant withholds any responsive document based on privilege or work product, Defendant shall serve a privilege log within the same 10 days.

Plaintiff's Motion to Compel Further Responses to Form

Interrogatories, Set One (9418), is GRANTED. Within 10 days of service of this order, Defendant shall serve further, verified responses to Form Interrogatories, Set One, Nos. 1.1, 3.1, 3.2, 3.3, 4.1, 4.2, 12.1 through 12.7, 14.1, 14.2, 15.1, 17.1, and 50.1 through 50.6.

Defendant Tesla, Inc. and its counsel of record, jointly and severally, must pay sanctions in the amount of \$5,369.40 within 30 days of service of this order.

Moving Party is to give notice.